

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
HONORABLE MICHAEL L. MAU
1050 Mission Road, South San Francisco
Department 20, Courtroom L

July 10, 2026 at 9:00 AM

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept20@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5120 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to: LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 8:50 am.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 576 6143 Password: 142907

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
09:00 AM	
23-CIV-03337	KARLA CUELLAR VS. WEBCOR CONSTRUCTION, ET AL.
LINE 1	
KARLA CUELLAR WEBCOR BUILDERS, INC.	JOSHUA D. WHITE BRIAN FEATHERSTUN

DEFENDANT: WEBCOR BUILDERS, INC.'S MOTION FOR TERMINATING SANCTIONS, OR IN THE ALTERNATIVE, EVIDENTIARY AND MONETARY SANCTIONS FOR DISCOVERY ABUSE AND WILLFUL VIOLATION OF A COURT ORDER

TENTATIVE RULING:

Defendant Webcor Construction has moved for terminating sanctions or, alternatively, evidentiary and monetary sanctions, against Plaintiff Karla Cuellar.

Defendant's motion for terminating sanctions or, alternatively, evidentiary sanctions, is DENIED.

Defendant's motion for monetary sanctions is GRANTED.

Further, the Court ORDERS Plaintiff to attend and complete her deposition within fourteen (14) days of receiving notice of this order.

BACKGROUND

Beginning in February of 2026, Defendant has been attempting to take Plaintiff's deposition so that it could timely prepare and file its motion for summary judgment. (Featherstun Decl., ¶ 6.) Plaintiff refused to appear for multiple properly noticed depositions in February and March of 2026, without serving any objections or seeking a protective order. (*Id.*, at ¶ 7.) In March, Defendant sought an ex parte order compelling Plaintiff's attendance and execution of her read and sign errata within three days to preserve the trial calendar at that time. (*Id.*, at ¶ 8.) The Court granted that ex parte on March 12, 2026, ordering Plaintiff to appear on March 26, 2026. (*Ibid.*; See Order Granting Ex Parte Motion to Compel, March 12, 2026.)

In direct violation of this Court's order, Plaintiff failed to appear for her deposition on March 26, 2026. (Featherstun Decl., ¶ 12.) Defendant again sought ex-parte relief compelling Plaintiff's attendance. The Court again granted Defendant's unopposed ex-parte motion, continuing the trial and all associated pre-trial deadlines and ordering Plaintiff to appear for deposition within 45 days. (*Id.*, at ¶ 14; See Order Granting Ex Parte Motion to Compel, April 2, 2026.)

Plaintiff appeared at a noticed deposition on May 14, 2026, within the 45-day period ordered by this Court. (Featherstun Reply Decl., ¶ 3.) Leading up to the deposition, Plaintiff had informed Defendant that she needed a Spanish language interpreter at the deposition. (*Id.*, at ¶ 2.) Less than two hours into the deposition, Plaintiff began disputing the accuracy of the court-certified interpreter's translations. (*Id.*, at ¶ 4, Ex. A, Deposition Transcript, 41:3 – 44:5.) Defendant asked Plaintiff to specifically identify the disputed portions of the translation. (*Id.*, at ¶ 5, Ex. A., 41:13-42:4; 43:1-16, 50:16-51:21.) Plaintiff identified, "when I said I thought that he was judging me," as a disputed portion of the translation, but otherwise did not provide any examples of translation disputes. (*Id.*, Ex. A, 44:11-12; 45:10 – 50:1.)

The parties agreed to leave the deposition open and continue it to a date within the next 30 days. (*Id.*, at ¶ 8, Ex. A, 50:10 – 52:17.) Plaintiff's counsel agreed to provide said date by May 18, 2026. (*Ibid.*) Plaintiff failed to do so. (*Id.*, at ¶ 9, Ex. D, Email Correspondence re: Continued Deposition Dates.) On May 19, Defendant served Plaintiff with a deposition notice for June 3, 2026, while offering five later dates between June 4 to June 12 as alternative dates that could be accommodated upon Plaintiff's request. (*Id.*, at ¶ 10, Exh. D, E.) Two days before the deposition, Defendant sent a courtesy reminder email to confirm attendance, to which Plaintiff's counsel responded that Plaintiff would not be attending the noticed deposition. (*Id.*, at ¶ 11, Ex. D.) Plaintiff did not timely serve any objections or obtain a protective order. (*Ibid.*) On June 3, 2026, Plaintiff did not appear for her noticed deposition and Defendant took a non-appearance on the record. (*Id.*, at ¶ 13, Ex. G., Non-Appearance Dep. Transcript.)

On May 27, 2026, Defendant sent Plaintiff a copy of the May 14, 2026, deposition audio recording and the deposition transcript, and asked Plaintiff to identify the alleged translation errors by June 2, 2026. (*Id.*, at ¶ 7, Ex. C, Email Correspondence re: Disputed Translations.) Plaintiff did not respond. (*Ibid.*) The head of the interpreter's agency reviewed the audio from the deposition and found no translation inconsistencies with the deposition transcript. (*Id.*, at ¶ 6, Ex. B, Declaration of Vivien Nichols.)

ANALYSIS

Terminating Sanctions

Here, Plaintiff previously failed to comply with a court order compelling her attendance at a deposition scheduled for March 26, 2026. This has never been explained, and is inexcusable. On April 2, 2026, this Court granted Defendant's ex-parte motion to compel Plaintiff's deposition once more, ordering that Plaintiff appear for her deposition within 45 days.

After the Court's second order, Plaintiff appeared for a noticed deposition on May 14, 2026 – within the 45-day deadline set by the Court. However, during the deposition, Plaintiff asserted that that court-certified Spanish interpreter was not accurately translating her testimony. The parties agreed to leave the deposition open and continue it to a date within the next 30 days. Plaintiff's counsel agreed to provide said date by May 18, 2026. Plaintiff failed to do so.

On May 19, Defendant served a deposition notice for June 3, 2026, while offering five later dates between June 4 to June 12 as alternative dates that could be accommodated upon Plaintiff's request. Two days before the deposition, Defendant sent a courtesy reminder email to confirm attendance, to which Plaintiff's counsel responded that Plaintiff would not be attending the noticed deposition. Plaintiff did not timely serve any objections or obtain a protective order.

Plaintiff unquestionably failed to comply with the Court's first order requiring her attendance at the March 26, 2026 deposition. The Court also finds that Plaintiff failed to comply with the Court's second order compelling her deposition ultimately noticed for May 14, 2026. It is arguable that Plaintiff then obstructed the deposition, as she alleged that the interpreter's translations were inaccurate but refused to provide specific examples of the inaccuracies, both during and after the deposition. Even assuming Plaintiff did not obstruct the deposition, she nonetheless failed to subsequently appear – and failed to even provide dates of availability – after the parties expressly agreed to continue the deposition to date within 30 days.

The record shows a pattern of Plaintiff failing to appear for noticed depositions, including when appearance is ordered by the Court. Plaintiff is clearly abusing the discovery process. However, the Court finds that the record does not yet show that lesser sanctions would be ineffective. Indeed, lesser sanctions, such as monetary sanctions, have not yet been imposed against Plaintiff.

Notably, Defendant's cases cited in support of its request for terminating sanctions overwhelmingly involve monetary sanctions being imposed prior to terminating sanctions. (*See, e.g., Atlas v. Davidyan* (2025) 113 Cal.App.5th 1086, 1092-93 [imposing monetary sanctions five times]; *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 703-04 [imposing monetary sanction, then later citing party's failure to pay monetary sanction to support conclusion that "there's no sanction that is going to result in [the PMQ deposition]."]; *Moofly Prods., LLC v. Favila* (2020) 46 Cal.App.5th 1, 6 [court imposed monetary sanctions prior to terminating sanctions]; *Liberty Mut. Fire Ins. Co. v. LcL Adm'rs, Inc.* (2008) 163 Cal.App.4th 1093, 1105 [same]; *Parker v. Wolters Kluwer United States, Inc.* (2007) 149 Cal. App. 4th 285, 289 [same]; *Collisson & Kaplan v. Hartunian* (1994) 21 Cal.App.4th 1611, 1614-15 [same].)

Defendant's request for terminating sanctions is DENIED.

Evidentiary Sanctions

"The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters into evidence." (Code Civ. Proc., § 2023.030, subd. (c).)

Discovery sanctions must be proportionate to the discovery violation and tailored to remedy the specific harm caused by the withheld discovery:

Discovery sanctions are intended to remedy discovery abuse, not to punish the offending party. Accordingly, sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would

otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct

(*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223.) “The rule that a sanction order cannot go further than is necessary to accomplish the purpose of discovery . . . is rooted in the concept of constitutional due process.” (*Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 613.)

Defendant broadly requests an evidentiary sanction prohibiting Plaintiff from introducing “any testimony in this case – whether by declaration or otherwise – to create purported disputes of fact.” (MPA, 14:25-27; *See also*, Reply, 10:10-13.) Defendant fails to explain how such a broad request is proportionate to the discovery abuse and tailored to remedy the specific harm caused, especially when Defendant will still be able to complete Plaintiff’s deposition. Section 2023.030(c) allows courts to impose evidentiary sanctions prohibiting the introduction “designated matters” into evidence. The Court finds that a blanket evidentiary sanction prohibiting the use of *any* testimony to create triable issue of facts does not adequately designate matters to be excluded and is tantamount to a terminating sanction. At this point, the request is premature and not warranted.

Defendant’s request for evidentiary sanctions is DENIED.

Monetary Sanctions

Monetary sanctions may be imposed when a party or attorney engages in misuse of the discovery process, including “[d]isobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010.) Motions for monetary sanctions for discovery abuses may be made after an underlying motion to compel is litigated. (*London v. Dri-Honing Corp.* (2004) 117 Cal.App.4th 999, 1008-1009.)

Defendant requests monetary sanctions for attorney’s fees and costs it incurred because of Plaintiff’s discovery misconduct. Specifically, Defendant requests sanctions for attorney’s fees for time spent preparing and appearing for the two ex parte motions compelling Plaintiff’s deposition, the costs associated with filing those motions, and fees and costs associated with this instant motion. (Featherstun Decl., ¶¶ 20-22.) Defendant seeks to recover for eight (8) hours of work on the first ex parte motion and seven and one-half (7.5) hours of work on the second ex parte motion. (*Id.*, at ¶ 20.) Defendant seek to recover for fifteen (15) hours of work on the instant motion for terminating, evidentiary, and monetary sanctions, and the reply. (*Id.*, at ¶ 21.) The stated rates for the attorneys who performed the work ranges from \$950 per hour to \$2,250 per hour. (*Id.*, at ¶¶ 20-21.) Total fees that could be sought are nearly \$45,000.00. (*i.*, at ¶ 22.) However, Defendant only requests sanctions up to \$20,000. (*Id.*, at ¶ 22.) \$20,000 for 30.5 hours of work amounts to a rate of \$656 per hour.

This court may use its own experience to determine the value of attorneys’ fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]);

Reynolds v. Ford Motor Company (2020) 47 Cal.App.5th 1105, 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.” (citations omitted)].).

On this motion the Court finds this request reasonable, as to the hourly rate and time spent.

Defendant’s request for monetary sanctions of \$20,000.00 against Plaintiff and her counsel of record, jointly and severally, is GRANTED.

Plaintiff’s Deposition

Defendant’s effort to depose the Plaintiff, should not be this difficult. This has been discussed at length with all counsel during past Ex Parte hearings. Plaintiff filed this case and is required to comply with the Discovery Act, and to date, she has instead been obstructing her deposition at every opportunity. Plaintiff is on notice that while evidentiary or terminating sanctions are not being awarded today, they may be highly appropriate the next time the Court has to hear a motion based on further obstructionist tactics.

The Court ORDERS that Plaintiff appear at and complete her deposition within 14 days of notice of this order, unless the parties agree otherwise. Failure to comply with this order may result in evidentiary and/or terminating sanctions.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

24-CIV-00311 A.V. VS. SAN BRUNO PARK SCHOOL DISTRICT, ET AL.
LINE 2

A.V.
JEREMY YEH

KHALDOUN A. BAGHDADI
CHARLES R. ROE

CASE MANAGEMENT AND TRIAL SETTING CONFERENCE (Joined with the vacated
Motion for Trial Preference)

TENTATIVE RULING:

All counsel to appear to set Trial and related dates, Zoom is allowed, using the Courtroom L
Zoom credentials.

09:00 AM

24-CIV-05635 MONICA D COOPER VS. THANH K. CHUNG, ET AL.
LINE 3

MONICA D. COOPER
THANH K. CHUNG

ERIC L. TOSCANO
MATTHEW G. SALAZAR

DEFENDANT BELONG HOME, INC.'S MOTION FOR SUMMARY ADJUDICATION OF
DEFENDANT THANH K. CHUNG'S CONTRACTUAL DUTY TO DEFEND AND
INDEMNIFY DEFENDANT BELONG HOME, INC.

TENTATIVE RULING:

Defendant Belong Home, Inc.'s motion for summary adjudication of Defendant Thanh K. Chung's contractual duty to defend and indemnify Defendant Belong Home is GRANTED in-part and DENIED in-part. (Code Civ. Proc. §437c, subd. (f)(1).)

The underlying action asserts various causes of action relating to Plaintiff Monica Cooper's residential tenancy at a rental property owned by Defendant Chung and managed by Defendant Belong Home, Inc. These defendants entered into an agreement regarding the management of the rental property. In pertinent part, the section entitled "Owner's Responsibilities" states [Defendant Chung] shall

(b) Indemnify, defend and hold harmless Belong and its employees and agents, as permitted by law, from all costs, expenses, suits, liabilities, damages, attorney fees **and claims of every type**, including, but not limited to, those arising out of injury or death of any person, or damage to any real or personal property of any person, including Owner, (i) for any repairs performed by Owner or by others hired directly by Owner; (ii) **for those acts relating to the management, leasing, rental, security deposits, or operation of the Property by Belong, or its employees or agents, or the performance or exercise of any of the duties, powers or authorities granted to Belong**; or (iii) from any incorrect or incomplete information supplied by Owner, or from any material facts that Owner knows but fails to disclose including dangerous or hidden conditions on the Property. This paragraph shall survive any termination of this Agreement.

(Declaration of Matthew G. Salazar, Exh. 3&4, ¶4(b), emphasis added.)

Belong Home brings the instant motion pursuant to Code of Civil Procedure section 437c, subdivision (f)(1) on the grounds that the written Home Management Agreements executed between Belong and Chung include express contractual provisions whereby Chung agreed to defend, indemnify and hold harmless Belong and its employees from all costs, expenses, suits,

liabilities, damages, attorney fees and claims of every type, arising out of any acts relating to Belong's or its employees or agents acts relating to management, leasing, rental security deposits, or operation of the rental property at issue in this litigation, or the performance or exercise of any of the duties, powers or authorities granted to Belong. (Decl. Segundo Alfonso filed April 20, 2026, iso Motion, ¶¶ 3&4, Exhs. A & B.)

Defendant Chung opposes, contending that the motion is procedurally defective having improperly combined two distinct legal obligations, the duty to defend and the duty to indemnify. Additionally, the indemnity clause itself is broad and does not include the negligence and misconduct allegations included in the underlying complaint. Thus, because Belong's liability has not been established, the duty to indemnify is prematurely sought. Even if it were, however, Belong fails to carry its burden that there are no triable issues of material facts because the evidence in support includes inadmissible and unsupportive evidence. Lastly, the indemnity clause itself is unconscionable procedurally and substantively which renders it unenforceable.

A. Evidentiary Objections

Defendant Chung raises a total of 31 evidentiary objections to the two declarations Beyond Home submits in support of their motion. "In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion." (Code Civ. Proc., § 437c, subd. (q).) The Court rules as follows:

Objections 1 through 30 to the Declaration of Segundo Alfonso:
OVERRULED. Relevant.

Defendant Chung raised one evidentiary objection to the Declaration of Marissa Nebenahl, Exhibit 1, p. 96:10-18 which is OVERRULED. Relevant.

B. Legal Standard

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, ... if the party contends that ... there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action ... A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).) A motion for summary adjudication "shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)

"The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying

fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (*Ibid.*)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal. App. 4th 463, 467; Code Civ. Proc. § 437c, subd. (c).)

C. Discussion

The Court’s initial question regards the applicability and scope of the indemnity clauses found in the parties’ June 24, 2021, and October 19, 2021 agreements with one another. (Decl. Matthew G. Salazar, filed June 18, 2026, iso Opp., Ex. 3, ¶4(b), Ex. 4, ¶4(b).) “Indemnity involves “the obligation resting on one party to make good *a loss or damage* another party has incurred.” (*Maryland Casualty Co. v. Bailey & Sons, Inc.* (1995) 35 Cal.App.4th 856, 864, 41 Cal.Rptr.2d 519, italics added (*Maryland Casualty*).)” (*Roos v. Kimmel* (1997) 55 Cal.App.4th 573, 582 (*Roos*).)

[O]ur Supreme Court, while acknowledging this general rule, has held that “whether an indemnity agreement covers a given case turns primarily on contractual interpretation, and it is the intent of the parties as expressed in the agreement that should control. When the parties knowingly bargain for the protection at issue, the protection should be afforded. This requires an inquiry into the circumstances of the damage or injury and the language of the contract; of necessity, each case will turn on its own facts.” (*Rossmoor, supra*, 13 Cal.3d at p. 633, 119 Cal.Rptr. 449, 532 P.2d 97; *Morton Thiokol, supra*, 193 Cal.App.3d at p. 1028, 238 Cal.Rptr. 722.)

(*Roos, supra*, 55 Cal.App.4th at 583.)

Here, Defendant Beyond Home asserts that the indemnity agreement between the parties is unequivocally clear that Defendant Chung must “defend...Belong and its employees and agents, as permitted by law, from all costs, expenses, suits, liabilities, damages, attorney fees and claims of every type, including, but not limited to, those arising out of injury or death of any person, or damage to any real or personal property of any person[.]” (SSUMF Nos. 5, 6, 10.) Because Plaintiff’s claims specifically relate to “acts relating to the management, leasing, rental, security deposits, or operation of the Property by Belong, or its employees or agents, or the performance or exercise of any of the duties, powers or authorities granted to Belong” (SSUMF Nos. 5, 6, 9, 10) Thus, the claims raised in the complaint are included in the express language of the indemnity agreement, and Chung’s duty to defend Belong arose immediately upon Belong’s tender of defense regardless of any finding of liability for negligence or Defendant’s affirmative defenses. See, Civil Code Section 2778, subpart (3).

“[A] contractual indemnitor has the obligation, upon proper tender by the indemnitee, to accept and assume the indemnitee’s active defense against claims encompassed by the indemnity

provision.” *Crawford v. Weather Shield Mfg., Inc.* (2008) 44 Cal.4th 541, 555. “[T]he duty arises immediately upon a proper tender of defense by the indemnitee, and thus before the litigation to be defended has determined whether indemnity is actually owed.” *Id.* at 558. Here Belong tendered the defense of this action to Mr. Chung on October 18, 2024. SSUMF, ¶11. Opposing party concedes this tender of defense. Separate Statement in Opposition (“SSiO”) ¶ 11. Further, even a cursory review of Plaintiff’s Complaint demonstrates that some allegations clearly fall within the provisions of the above clause that would require a defense. Though the indemnity clause at issue is not in the insurance context, the issue is analogous, that the duty to defend is very broad and includes covered and non-covered claims. *See generally, Waller v. Truck Ins. Exchange* (1995) 11 Cal.4th 1, and *Horace Mann Ins. Co. v. Barbara B.* (1993) 4 Cal.4th 1076.

The Motion for Summary Adjudication is thus GRANTED on the duty to defend, i.e. Thanh K. Chung had a duty to defend Belong Homes, Inc. from the date of tender on October 18, 2024.

However, the duty of indemnity is a separate matter. The Court’s reading of the indemnity agreement reveals the utter lack of any reference to active negligence. Instead, the clause somewhat cryptically refers to “costs, expenses, suits, liabilities, damages, attorney fees and claims of every type, including, but not limited to, those arising out of injury or death of any person, or damage to any real or personal property.” (See Salazar Decl. Ex. 3 ¶4(b).) The Court finds the lack of the use of the word “negligence” renders the indemnification clause in this case a general indemnity provision, and the omission of any reference to “active negligence” excludes this type of claim from the scope of indemnification. Likewise, the indemnity clause also does not address intentional or willful misconduct.

As noted by the California Supreme Court in *Crawford v. Weather Shield Mfg., Inc.* (2008) 44 Cal.4th 541, “if one seeks, in a noninsurance agreement, to be indemnified for his or her own active negligence or regardless of the indemnitor’s fault—protections beyond those afforded by the doctrines of implied or equitable indemnity—language on this point **must be particularly clear and explicit**” (*Id.* at p. 552, emphasis added.) That is not the case with this agreement.

Furthermore, the potential liability for and plaintiff’s alleged damages have not yet been adjudicated. Trial on this matter is still forthcoming. Moving parties’ Separate Statement does not claim (nor can it claim) that liability for and plaintiff’s alleged damages are not triable issues. Conversely, responding parties’ SSiO demonstrates triable issues. SSiO, Response ¶ 10, and Disputed ¶¶ 2-5, and 7-8. “The duty to indemnify does not arise until liability is proven.” *Aluma Systems Concrete Construction of California v. Nibbi Bros, Inc.* (2016) 2 Cal.App.5th 620, 627 (citations omitted).

Accordingly, defendant Beyond Home’s motion for summary adjudication is DENIED as to the duty of indemnity.

Relatedly, the Court agrees with Belong Home, that Chung has failed to raise its unconscionability argument as an affirmative defense as required, and therefore that argument need not be addressed substantively. *See, Answer filed 1/15/2025. Murphy v. Twitter, Inc.* (2021) 60 Cal.App.5th 12, Fn. 11 (“unconscionability is an affirmative defense”)

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

24-CIV-05635 MONICA D. COOPER VS. THANH K. CHUNG, ET AL.
LINE 4

MONICA D. COOPER
THANH K. CHUNG

ERIC L. TOSCANO
MATTHEW G. SALAZAR

DEFENDANT/CROSS-COMPLAINANT: BELONG HOME, INC'S TO COMPEL AN
INDEPENDENT MENTAL EXAMINATION OF PLAINTIFF MONICA COOPER

TENTATIVE RULING:

Defendant Beling Home, Inc.'s Motion to Compel Independent Medical Examination ("IME") of Plaintiff Monica Cooper is GRANTED, as follows:

Discovery by mental examination is permitted when "the mental or physical condition . . . of that party or other person is in controversy in the action." (Code Civ. Proc. section 2032.020 subd. (a).) The same subsection requires that "[t]he court shall grant a motion for a physical or mental examination under Section 2032.310 only for good cause shown." (*Id.*) The motion must "specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty" of the examiner. (Code Civ. Proc. section 2032.310.)

The Motion specifies that the examination is to be conducted by Dr. John M. Greene M.D. ("Dr. Greene") at his offices located at 634 North Santa Cruz Avenue, Suite 210, Los Gatos, California 95030. (Motion, at p. 2:1-3.) It further specifies Dr. Greene's specialty in psychiatry and describes that he will administer tests including the Minnesota Multiphasic Personality Inventory – 3 ("MMPI-3"), the Millon Clinical Multiaxial Inventory – IV ("MCMI-IV"), and the Rotter Incomplete Sentence Blank over a period of seven hours. (*Id.*, at p. 2:4-10.) The Motion does not specify the date and time of the examination, although Defendant's meet and confer correspondence indicates that Dr. Greene is available on July 10, 2026 at 10:00 a.m., and Defendant submits evidence that the parties have recently agreed to conduct the examination at that date and time. (Hatcher Decl., ¶3, Exh. A; Hatcher Decl. ISO Reply, ¶2, Exh. A.)

Defendant contends that because Plaintiff alleges that Belong Home's conduct and omissions caused her psychological harm, she has placed her mental condition in controversy. This is supported by Plaintiff's allegations of interference with her ability to function at home, psychological harm, and severe emotional distress. (See Complaint, ¶¶ 21-15, 47, 92.) Good cause therefore exists to compel the examination.

The motion is GRANTED. Plaintiff is ordered to attend the July 10, 2026, 10:00 a.m., IME with Dr. Greene at 634 North Santa Cruz Avenue, Suite 210, Los Gatos, California 95030, or such other date and time as mutually agreed to by the parties.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

25-CIV-02273 MIRAY YARASIR VS. DOUBLE AA CORPORATION, ET AL
LINE 5

MIRAY YARASIR
DOUBLE AA CORPORATION

ROBERT F BUZZARD
VASTI STEPHANY
MONTIEL

DEFENDANT DOUBLE AA CORPORATION'S DEMURRER TO PLAINTIFFS FIRST
AMENDED COMPLAINT

TENTATIVE RULING:

Defendant Double AA Corporation's Demurrer to Plaintiff Miray Yarasir's First Amended Complaint is SUSTAINED IN PART and OVERRULED IN PART.

Defendant Double AA Corporation ("Double AA") demurs to each cause of action asserted against it in the First Amended Complaint ("FAC"), both generally and specially for uncertainty. The general basis of the FAC is a February 12, 2025 incident in which Plaintiff Miray Yarasir was allegedly attacked and beaten by Defendant Hyiat Aish while working on premises controlled by Yarasir's employer, Double AA, while two other employees watched and failed to intervene or summon law enforcement. (Oct. 22, 2025 First Amended Complaint ("FAC"), ¶¶ 3, 7, 9.)

A. 2nd & 6th Causes of Action: Negligence & Premises Liability

The second cause of action is for negligence, and Double AA's liability is based on its "negligent allowance of [Aish] on the Premises despite knowledge of her anger and dangerous propensities, and the failure of its employees Anna Abushi and Ianho XXXXXX to intervene or call the police." (FAC, ¶ 18.) The sixth cause of action is for premises liability, which is merely a species of negligence, and is based on the same allegations. (*Id.*, at ¶ 34.)

Double AA first contends that the fact that the count sometimes refers to "Defendants" collectively and that the FAC does not "not indicate the acts or omissions which are said to have been negligently performed by Double AA." (Dec. 15, 2025 Memorandum of Points & Authorities, p. 9, ll. 19–20.) The quoted allegation from the eighteenth paragraph of the FAC shows this contention is without merit. The FAC alleges Double AA is (1) liable for failing to exclude Aish from the premises and (2) vicariously liable for the failure of its employees to render aid. If either theory of liability is adequately alleged, then the demurrer to this cause of action must be overruled.

The latter theory is the same as that at issue in *Morris v. De La Torre* (2005) 36 Cal.4th 260 (*Morris*). There, the Supreme Court held that a business proprietor has a special relationship with

invitees on the premises under its control and owes a “duty to undertake reasonable and minimally burdensome measures to assist customers or invitees who face danger from imminent or ongoing criminal assaultive conduct occurring upon the premises.” (*Morris*, at p. 270.) When the assault is ongoing, whether the assault could have been foreseen is irrelevant—it takes no foreknowledge to respond to a present danger. (*Id.*, at pp. 270–271.) Thus, the defendant restaurant’s motion for summary judgment could not be granted against the plaintiff who was stabbed in the parking of a restaurant and where the defendant’s employees witnessing the assault failed to telephone the police. (*See id.*, at pp. 267, 278.)

Double AA’s contention that *Morris* “is highly fact-dependent and not clearly applicable on demurrer” because it involved a motion for summary judgment misses the mark. (Jul. 2, 2026 Memorandum of Points & Authorities, p. 4, l. 22.) The case establishes a duty in circumstances plainly analogous to those alleged in the FAC, and Double AA’s attempt to distinguish the case because it involved gang members, a knife, and a restaurant focuses on insignificant differences for purposes of this demurrer—the nature of the business, the instrumentality of the assault, and the affiliations of the attacker are entirely irrelevant to the proprietor’s duty and breach.

The FAC alleges that Double AA’s employees witnessed the ongoing assault, failed to telephone the police, were acting in the course and scope of their employment at the time, and the failure substantially contributed to Yarasir’s injuries. (FAC, ¶¶ 6, 9, 18.) *Moore* and the FAC’s allegations sufficiently show that Double AA owed a duty to take minimally burdensome responsive measures after its employees became aware of the assault. An allegation that an employee acted “in the course and scope of his said employment” is sufficient for purposes of demurrer to show the employees were on duty and to support a respondeat superior. (*Martin v. Leatham* (1937) 22 Cal.App.2d 442, 446; see *Connell v. Clark* (1948) 88 Cal.App.2d 941, 944.) The causal connection is fairly inferable from the stated allegations: had police been summoned and intervened, fewer or less severe injuries would have been sustained.

Accordingly, the demurrer to the second and sixth causes of action is OVERRULED.

B. 3rd Cause of Action: Negligent Supervision

The third cause of action is for negligent supervision, based on Double AA’s alleged failure to train its employees to take minimally burdensome responsive measures such as calling the police when fellow employees are under assault. (FAC, ¶ 21.)

Double AA’s arguments as to this cause of action are the same—that neither it and its employees owed the duty that *Moore* says they do. However, since they do owe a duty to take such responsive measures under the facts alleged, it follows that Double AA has a duty to train and supervise employees to fulfill that duty.

Accordingly, the demurrer to the third cause of action is OVERRULED.

C. 4th Cause of Action: False Imprisonment

The fourth cause of action is for false imprisonment, and Double AA's liability is based on a respondeat superior theory for Aish's intentional conduct. In her opposition, Yarasir concedes the cause of action is demurrable with respect to Double AA. She asks instead for leave to amend or, alternatively, for confirmation that the count will proceed against Aish.

Yarasir does not show at all the manner in which she believes the cause of action against Double AA is 'readily curable,' therefore the latter alternative is granted: demurrer to the fourth cause of action as asserted against Double AA is SUSTAINED without leave to amend.

D. Workers' Compensation

While the parties discuss whether workers' compensation is the exclusive remedy for any claims in the opposition and reply memoranda, the issue was not raised in the moving papers as grounds for demurrer, and the Court declines to consider it.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

25-CIV-05851 JOANNE SMITH, ET AL VS. ANDRE NICOLAS GAY M.D., ET AL
LINE 6

JOANNE SMITH
ANDRE NICOLAS GAY M.D.

ERIC B. STRONGIN
D. SCOTT BARBER

DEFENDANT GOLDEN OAK HOLDINGS, LLC dba VASONA CREEK HEALTHCARE
CENTER'S PETITION TO COMPEL ARBITRATION

TENTATIVE RULING:

The Petition to Compel Arbitration by Defendant Golden Oak Holdings, LLC dba Vasona Creek Healthcare Center ("Defendant" or "Vasona Creek") is DENIED.

Plaintiff's Evidentiary Objections

Nos. 1, 5, 7, 8: OVERRULED

Nos. 2-4, 6: SUSTAINED.

Plaintiffs JoAnne Smith's and Jay Smith's ("Plaintiffs") late opposition

Defendant objects to Plaintiffs' late opposition. The court exercises its discretion to consider Plaintiffs' late opposition and OVERRULES the objection. Plaintiffs are cautioned to comply with the time frame for filing and serving papers in the future.

The arbitration agreement

Defendant Vasona Creek seeks to compel arbitration of Plaintiffs' claims based on an arbitration agreement signed by Plaintiff JoAnne Smith ("Mrs. Smith"). The arbitration agreement states in relevant part:

1. It is understood that any dispute as to medical malpractice, that is as to whether any medical services rendered under this contract were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered or not rendered, **will be determined by submission to arbitration as provided by the Federal Arbitration Act, 9 U.S.C. Section 1 et seq. ("F.A.A.")**, and not by a lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. Both parties to this contract, by entering into it, are giving up their constitutional right to have any such dispute decided in a court of law before a jury, and instead are accepting the use of arbitration. The Parties agree that any such action or claim must be brought within the

statute of limitations established in the applicable state or federal law pertaining to the underlying claim.

2. It is understood that any and all other disputes, controversies, demands, or claims that relate to or arise out of the provision of services by the Facility to Resident, including, but not limited to, any action for injury or death arising from negligence, wrongful death, intentional tort, or statutory causes of action, including, but not limited to, the Elder Abuse and Dependent Adult Civil Protection Act, the Unfair Competition Act, the Consumer Legal Remedies Act, and *Health & Safety Code* Section 1430, will be determined by submission to arbitration as provided by the F.A.A., and not by a lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. Both parties to this contract, by entering into it, are giving up their constitutional right to have any such dispute decided in a court of law before a jury, and instead are accepting the use of arbitration. The Parties agree that any such action or claim must be brought within the statute of limitations established in the applicable state or federal law pertaining to the underlying claim.

3. The Resident's agreement to arbitration is not a precondition for medical treatment or admission to the Facility.

4. The parties to this Agreement acknowledge and agree that this Agreement relates to the Resident's admission to the Facility, and that the Facility, among other things, participates in the Medicare and/or Medi-Cal programs and/or procures supplies from out of state vendors. The parties therefore acknowledge and agree that the Resident's admission to the Facility (including any readmissions) evidences a transaction in interstate commerce governed by the F.A.A. **The parties to this Agreement further acknowledge and agree that this Agreement shall be construed and enforced in accordance with and governed by the F.A.A. and that the procedures set forth in the F.A.A. shall govern any petition to compel arbitration.**

5. **The parties agree that the California Code of Civil Procedure shall not govern this Agreement.** Accordingly, the parties agree that California *Code of Civil Procedure* §1281.2(c) is excluded from this Agreement. The parties do not want any claims not subject to arbitration to impede any and all other claims from being ordered to binding contractual arbitration.

...

(Barber Decl., Exh. A (bold added).)

Defendant fails to show a valid, irrevocable and enforceable arbitration agreement exists.

The court must first determine whether this issue to compel arbitration is governed by the California Arbitration Act ("CAA") or the Federal Arbitration Act ("FAA"). (Knight, Chernick, et al., Cal. Prac. Guide-Alternative Dispute Resolution (The Rutter Group), ¶ 5:77.1.) "The CAA and FAA allocate authority for deciding defenses to enforcement in varying ways and are not

always consistent with each other. For example, waiver issues generally are for the court to decide under the CAA but for the arbitrator under the FAA.” (*Ibid.*)

In *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346, the court found no cases interpreting the sentence that “Enforcement of this agreement to arbitrate shall be governed by the Federal Arbitration Act” and concluded that the parties intended to incorporate the FAA with respect to compelling arbitration. Previous cases held that when an arbitration agreement provides for enforcement under California law, the CAA governs a party’s motion to compel arbitration. (*Ibid.*) The court concluded that it follows that when an agreement provides that its “enforcement” shall be governed by the FAA, the FAA governs a party’s motion to compel arbitration. (*Ibid.*)

In this case, the arbitration agreement provides that the procedures under the FAA apply to a petition to compel arbitration, and then states that the Code of Civil Procedure does not apply. Defendant therefore cannot invoke the Code of Civil Procedure and California cases relying on the Code of Civil Procedure in seeking to compel arbitration. Plaintiffs correctly point out that Defendant cannot have it both ways by invoking Code of Civil Procedure sections 1281.2, 1281.4 and 1295 in its Petition, but then relying on paragraph 5 that excludes the California Code of Civil Procedure when it protects Plaintiffs from inconsistent rulings. (Plaintiffs’ Opposition, p. 13:27-14:1.)

Defendant’s Petition is therefore problematic because it relies on the Code of Civil Procedure. Defendant brings this Petition pursuant to the FAA and “California *Code of Civil Procedure* sections 1281.2, 1281.4 and 1295, on the grounds that the Arbitration Agreement executed by co-plaintiff Plaintiff, JOANNE SMITH, for arbitration of the dispute which is the subject of this action.” (Defendant’s Notice, p. 2:1-4.) Defendant’s Memorandum also relies on the Code of Civil Procedure as well as California cases addressing the Code of Civil Procedure, but it also argues that Code of Civil Procedure section 1281.2(c) does not apply based on the arbitration agreement. More importantly, Defendant relies on the three-step process applied by California courts under Code of Civil Procedure section 1281.2 to determine whether an arbitration agreement exists instead of addressing the procedures under the FAA that govern a petition to compel arbitration. Defendant claims only that arbitration agreements are valid, irrevocable and enforceable save upon such grounds as exist at law or in equity for the revocation of any contract, citing 9 U.S.C. section 2. Compounding the issue, is that Plaintiff’s Opposition then also argues the substantive procedure to compel arbitration under the Code of Civil Procedure, and neither side address the right to compel arbitration under the FAA.

Notwithstanding this failure to address the procedures under the FAA to petition to compel arbitration, Defendant provides a copy of the arbitration agreement as an exhibit to Defendant’s counsel’s declaration. (Barber Decl., Exh. A.) Defendant’s counsel states that upon admission to Defendant’s facility, Mrs. Smith signed the arbitration agreement that provides for arbitration of disputes that are the subject of this action. (*Id.*, at ¶ 2.)

Plaintiffs object to this portion of Defendant's counsel's declaration and the attached arbitration agreement, as lacking foundation and personal knowledge and improper authentication. (Plaintiffs' Evidentiary Objections nos. 2-3.). The Court sustained these objections.

California applies a three-step process under Code of Civil Procedure section 1281.2 to determine whether an arbitration agreement exists. (See *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164-165 (*Gamboa*).) At the first step, the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy and can meet its burden by attaching to the petition or motion a copy of the arbitration agreement purporting to bear the opposing party's signature. (*Id.*, at p. 165.) If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then the opposing party bears the burden of producing evidence to challenge the agreement at the second step. (*Ibid.*, citing *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.) If the opposing party meets its burden of producing evidence, then the moving party must establish with admissible evidence a valid arbitration agreement between the parties in the third step. (*Ibid.*) Thus, if Defendant could seek to enforce the arbitration agreement under section 1281.2, the court could agree that Defendant's counsel's declaration and the attached arbitration agreement are sufficient to meet this first step, except for Plaintiffs' valid evidentiary objections. Since the arbitration agreement provides that the California Code of Civil Procedure does not apply, Defendant has not shown that the three-step process applied by California courts under section 1281.2 is even applicable. Defendant also fails to show that this same process applies under the FAA. The court sustained Plaintiffs' evidentiary objections and finds that Defendant fails to present admissible evidence of a valid, irrevocable and enforceable arbitration agreement.

Under the FAA, the analysis is equally straightforward. On a petition to compel arbitration, the "court shall hear the parties, and upon being satisfied that the making of the agreement for arbitration or the failure to comply therewith is not in issue, the court shall make an order directing the parties to proceed to arbitration in accordance with the terms of the agreement." 9 U.S. Code § 4. "The court's role under the Act is therefore limited to determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue." *Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (2000 9th Cir.) 207 F.3d 1126, 1130. For the same reasons cited above, Defendant fails to establish a valid agreement to arbitrate exists.

The court does not reach the remaining arguments.

Considering the above, the court does not reach or rule on the remaining arguments raised by the parties as the motion to compel arbitration fails at the first step.

The Court does, however, take note that there was apparently a tentative or proposed stipulation to arbitration. Reply Brief, pg. 2, line 20, referring to the attached Barber Decl., ¶ 3. The proposed stipulation is not before the Court. It is therefore unclear, if even this proposed

stipulation was only by and between Plaintiffs, and this lone defendant Vasona Creek Healthcare Center who is the only defendant that has moved to compel arbitration, or whether it was inclusive of the other named defendants of Dr. Andre N. Gay, Silicon Valley Orthopedic Sports Specialists, and ASHMC Seton Medical Center, LLC. The Court is merely flagging an open question, of whether the intention was to arbitrate part of the case, or the entirety of the case. If the former, then there is a possibility of conflicting rulings on common issues of law or fact, which would be a separate basis to deny the motion. CCP § 1281.2(c).

In any event, the Petition to Compel Arbitration is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

25-CIV-08725 TREP 2121 ECR LLC VS. BRAIN TECHNOLOGIES, INC.
LINE 7

TREP 2121 ECR LLC
BRAIN TECHNOLOGIES, INC.

ANTHONY BUCHIGNANI
CRAIG A. HANSEN

DEFENDANT BRAIN TECHNOLOGIES, INC.'S MOTION TO SET ASIDE ENTRY OF
DEFAULT

TENTATIVE RULING:

Initially, the Court notes that Defendant has not provided the correct address for the hearing. Department 20 is located at the Northern Branch, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

The Court further notes that the Notice of Motion and Motion, and the Memorandum of Points and Authorities in Support of the Motion, have not been signed. Assuming that this failure is inadvertent, Defendant is directed to file signed versions of these papers before the hearing. Plaintiff does not raise this issue in its opposition and has thus waived any objection on this basis. Furthermore, the Declaration of Samuel Lee was signed and filed, as the Vice President of Operations of Brain Technologies, Inc.

The Motion to Set Aside Entry of Default (the “Motion”) brought by Defendant Brain Technologies, Inc., is GRANTED.

Plaintiff’s Request for Judicial Notice is GRANTED. (Code Civ. Proc., § 452, subds. (c) & (h), & § 453.) However, judicial notice is limited to the existence and facial contents of the document shown in Exhibit RJN1, which was filed with the Secretary of State (Defendant’s RJN, Supp. Hadjian Decl., ¶ 2, & Exh. RJN1). (*See Yvanova v. New Century Mortg. Corp.* (2016) 62 Cal.4th 919.)

Background

Per the Complaint, Plaintiff owns realty located at 2121 S. El Camino Real, San Mateo, California 94403 (the “Building”). Plaintiff’s predecessor leased Suite 900 of the Building (the “Premises”) to an entity that was the predecessor of its tenant pursuant to a “Master Lease,” which entity in turn sublet the Premises to Defendant under a “Sublease.” After the Sublease expired on November 29, 2024, and the Master Lease expired the following day, Defendant continued in possession of the Premises as an unauthorized holdover under both leases. After

Defendant failed to pay the holder rent through September 2025, Plaintiff served on Defendant a Notice of Belief of Abandonment, providing *inter alia* that the Premises would be deemed abandoned as of October 6, 2025, unless Defendant were to provide written notice. Through the date of filing, Defendant had not paid the full amount owed after an alleged ten months of holdover.

Plaintiff requested and the Clerk entered the default of Defendant on January 6, 2026 (the “Default”). Plaintiff also sought a default judgment by the court, which the court denied without prejudice for insufficiencies of the J. Sweeney Declaration, including that the declaration failed to establish personal knowledge that Defendant actually occupied the Premises for each month alleged, and failed to explain why the notice of abandonment had not been served earlier. (Judgment, filed on March 30, 2026.)

The Motion Is Granted.

Defendant asserts that service was defective (Code Civ. Proc., §§ 415.20 & 416.10, subds. (a)), the court may set aside the Default because it lacks jurisdiction over Defendant (*id.*, § 473, subd. (d)), and the Default resulted from Defendant’s mistake, inadvertence, surprise, or (excusable) neglect (*id.*, § 473, subd. (b)). Defendant further asserts that the Motion is timely.

This Motion turns on whether service upon the receptionist at Defendant’s usual mailing address constitutes substituted service upon its agent for service of process pursuant to Code of Civil Procedure section 415.20, subdivision (b). It does not, the Proof of Service is invalid.

In pertinent part, the governing statutes provide that: “A summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods: [¶] To the person designated as agent for service of process” (Code Civ. Proc., § 416.10, subd. (a)); and:

If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served ..., a summons may be served by leaving a copy of the summons and complaint at *the person’s* dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of *their* office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.

(Code Civ. Proc., § 415.20 subd. (b) (emphasis added).)

Defendant asserts that Plaintiff’s Proof of Service (“PoS”) indicates that it attempted to serve Defendant’s agent for service of process, but the Declaration of Deanna Goutzos, the person

served, shows that the address set forth in the PoS is neither her office nor her usual mailing address. (Goutzos Decl., ¶¶ 5-6.) Thus, Code of Civil Procedure section 415.20 has been violated and the court lacked jurisdiction over Defendant.

Plaintiff claims that:

Defendant's own Secretary of State filing listed its business address as the address of its agent for service of process. Plaintiff was entitled to rely on Defendant's own publicly filed corporate records in identifying Ms. Goutzos as Defendant's agent for service of process, and serving her at Defendant's business address.

(Motion, 10:2-5.) However, the address shown in the Secretary of State's records is that of the Premises, not the WeWork address at which service was attempted. (Defendant's RJN, Supp. Hadjian Decl., ¶ 2, & p.5, in Exh. RJN1.)

Defendant argues that as the receptionist for WeWork, Defendant's shared office space, Ms. Doe was not "the person who is apparently in charge" of Defendant's office. (Code Civ. Proc., § 415.20, subd. (a).) In any case, the statute requires that the agent be served at the agent's dwelling house, usual place of abode, usual place of business, or usual mailing address. (*Id.*, § 415.20, subd. (b).)

The Motion is also timely. (*Manson, Iver & York v. Black* 176 Cal.App.4th 36, 42 ("A judgment that is void on its face may be set aside at any time.").)

The Court is mindful that the statutes for service of process must be adhered to strictly, and further, that as a matter of public policy, disposition of cases on their merits is strongly favored. The Court is concerned that Defendant may have been evasive, allegedly disappearing, and by failing to maintain a current filing with the Secretary of State as to its agent for service of process and her mailing address, even though the agent listed had been unavailable since April 2025. (Goutzos Decl., ¶¶ 2-4.) Defendant had information about how it should be served that Plaintiff lacked, despite the Secretary of State's records. Plaintiff attempted to effect service on Defendant's agent for service of process filed with the Secretary of State at Defendant's business address filed with the Secretary of State. When the address was found to be incorrect, Plaintiff attempted to effect service on Defendant's agent for service of process at Defendant's updated business address as determined through Plaintiff's further investigation, by leaving a copy of the papers with "the person who is apparently in charge" of Defendant's "usual mailing address," and then (Code Civ. Proc., § 415.20, subd. (a).) However, the statute directs Defendant to serve the agent at the agent's address, not Defendant's address.

Plaintiff's showing also raises concerns, including its present failure to answer the Court's questions set forth in the Denied Judgment filed on March 30, 2026, though resubmission was held due to this motion to set aside. However, these concerns do not affect the result.

The Court declines to award the requested attorney's fees and costs to Plaintiff for bringing the Application, obtaining the Default, and opposing the Motion.

The Motion to Set Aside Entry of Default is GRANTED, and the January 6, 2026 filed default is set aside. As Defendant has now generally appeared in this case, and Defendant has in the Reply Declaration of Wing C. Dam supplied its proposed Answer, Defendant is to file said Answer within ten days of the date of this hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

26-CLJ-00261 JPMORGAN CHASE BANK, N.A. VS. CANDY FILIPPINI
LINE 8

JPMORGAN CHASE BANK, N.A.
CANDY FILIPPINI

TIANHE BAI
SELF-REPRESENTED

Notice of Motion and Motion for Relief From Default

DEFENDANT CANDY FILIPPINI'S MOTION TO SET ASIDE AND VACATE DEFAULT
JUDGMENT AND ENTER ANOTHER AND DIFFERENT JUDGMENT

TENTATIVE RULING:

Defendant Candy Filippini's Motion to Set Aside and Vacate Default Judgment and Enter
Another and Different Judgment is DENIED.

Default Judgment in this matter was entered on February 26, 2026. Plaintiff filed the current
motion to set aside, on April 8, 2026, however it attaches no valid Proof of Service. Instead,
Plaintiff had filed a purported Proof of Service-Civil form on March 23, 2026, which claims that
service occurred on March 15, 2026. Clearly that Proof of Service-Civil is invalid, one cannot
serve a motion before it is even filed and before a date is scheduled for said motion.

Separately, the motion is also procedurally deficient. This matter is assigned to the Honorable
Michael L. Mau, Department 20, which is now located at 1050 Mission Road, South San
Francisco, CA 94080 in Courtroom L. (*See* Cal. Rules of Court, Rule 3.1110 [the required
Notice "must specify" the location of the hearing].) The April 8, 2026 Motion instead specifies it
would be heard in Dept. 20; [Courtroom] G, which is incorrect.

Due to these procedural defects, the motion is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to
all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that
the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court by Minute Order with
the Court waiving any Order after hearing.

09:00 AM

26-UDL-00442 CP VIII WESTLAKE OWNER 1 LLC v. PAUAL CHRISTENSEN
LINE 9

CP VIII WESTLAKE OWNER 1 LLC
PAULA CHRISTENSEN

KIYOSHI DIN
JULIET BRODIE

DEFENDANT STEPHANIE URDAHL'S MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING:

Defendant's motion for judgment on the pleadings is DENIED.

This is a residential unlawful detainer action based on a three-day notice to quit. Def Stephanie Urdahl moves for judgment on the pleadings.

A motion for judgment on the pleadings may be granted when the complaint does not state facts sufficient to constitute a cause of action. CCP §438(3). An unlawful detainer complaint fails to state a cause of action if it does not allege fact to show that def's right to possession was properly terminated. *Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 611. *Foster v. Williams* (2014) 229 Cal.App.4th Supp. 9, 14.

In this case, the three-day notice to quit states that defendant was arrested for misdemeanor battery and public intoxication after entering another unit and then slapping and pushing two contractors renovating the unit. There is no dispute that plaintiff seeks to evict defendant based on this single incident.

CCP Section 1161(4) provides that a tenant permitting, committing, maintaining or permitting the maintenance or commission of a nuisance, thereby terminates the lease and the landlord shall be entitled to possession under the unlawful detainer procedure. Civil Code §3479 defines a nuisance as anything that is injurious to health or is indecent or offensive to the senses or an obstruction to the free use of property so as to interfere with the comfortable enjoyment of life or property. Defendant cites no California authority that interprets Code of Civil Procedure section 1161, subdivision (4) to require continuing conduct. Section 1161, subdivision (4), also expressly refers to actions that may be in the singular, but the words "committing" or "commission of a nuisance." *Id.* Thus, the code itself does not even require continuing conduct.

Defendant's additional assertion that the single incident alleged in the complaint is insufficient to constitute a nuisance under Civil Code section 3479 presents a question of fact that must be determined by the trier of fact. *San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 937-938.

As such, the motion for judgment on the pleadings is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

POSTED BY: 3:00 P.M.